Rec'd October 9.

No 112.

Mr Pratt

U. S. Legation Japan,

Tokei, August 18, 1874.




Mr Bingham

to the

Hon. Secretary of State.

Subject.

Arrest of LeGendre by U. S. Consul at Amoy.

Enclosures.

1. M. F. A. to Mr Bingham — August 15, 1874.

2. Mr Bingham to the M. F. A. August 18. 1874.

No 112.

U. S. Legation, Japan,
Tokei, August 18, 1874.

Sir:

I have the honor to inform you of the receipt by me of a despatch from His Excellency the Minister for Foreign Affairs, of date the 1/112 15-th inst. (Enclosure No 1) to which I have replied by a letter of this date (Enclosure No 2.) 2/112

You will observe that it appears that, for the cause

The Honorable
The Secretary of State.

cause unknown to Mr Terashima. General Le Gendre, who has recently gone to China in the service of the Japanese Government, has been arrested at Amoy by order of the United States Consul at that port. I have no knowledge of the arrest further than the statements by Mr Terashima in the enclosed communication. Nor have I any knowledge of the special mission of General Le Gendre to China, save the Explanation of the Ministers, that he recently left Yedo "for Fukien of China," carrying a commission "to meet with "Le Toh Nien, Viceroy of Fukkien, "and Wan Tah, Tartar General, "and to explain to them "the facts with a view to remove "a difference existing between "China and Japan regarding "the Formosan affair".

On the 22d April last, as I have hitherto informed you in my No 78, General Le Gendre, on my protest and request, was by order of this Government, detached from service in the military and hostile Expedition to Formosa. He thereafter returned from Nagasaki to Yedo, not proceeding

proceeding to China, and remained here until about the 1st instant, when he proceeded to Amoy under this commission to the Viceroy of Formosa &c. The presumption is that our Consul, upon a complaint of the officials of China, arrested Le Gendre on the information that he was still in the service of the Japanese expedition as a military officer. That this Expedition, now that the responsibility has been officially assumed by this Government, is an act of war by Japan on China does not seem to admit of doubt; and that a citizen of the United States, who joins it in China as a military officer, thereby makes war upon China within the meaning and intent of the twenty fourth section of the Act of 1860, is, to my mind, also very clear. This may furnish the reason for the arrest, and, if the Consul was mistaken in the facts, he will, doubtless, so declare, and discharge Le Gendre.

It is rumored here that General Le Gendre was at once admitted to bail and discharged from custody.

Very

War seems almost inevitable between China and Japan. Should such calamity come, I fear it will be attended with serious disaster to Japan. I have endeavored to avert it, and have only to say that as I have good reason to believe that, after my protests of the 18th and 19th of April last, the Daijo Kwan resolved and ordered, not only that the American vessel "New York" and the American citizens employed in the Expedition should be detached from that service, but also that the Expedition

Expedition should not proceed to Formosa, but should remain at Nagasaki until further orders, and that the Government of Japan would first obtain the assent of China to an Expedition against the savages of Formosa before proceeding thither with a view to obtaining redress for grievances. But, I regret to add, the Expedition sailed from Nagasaki in defiance, as I believe, of the orders of the Government.

I have endeavored, in verbal communications, to advise this Government, that, having now invaded the territory occupied by

by the savages of Formosa, and having inflicted punishment upon them, Japan should order a retreat of her troops. This suggestion seemed to meet the approval of two of the Ministers, but, unhappily, has not yet been acted upon by the Government.

I am, Sir,

Your obedient servant,

Wm. A. Bingham

No 112 Enclosure No 1.

Copy.

Translation.

The 15th 9th Month
the 7th year of Meiji.

Your Excellency:

I have the honor to inform Y. E. that I am in great surprise to learn from a telegram received from the Japanese Consul at Amoy that, although its cause unknown to me, General Le Gendre, in the service of the Japanese Government and who has recently left here for Fukien of China, carrying a commission to meet with Le Toh Kien, Viceroy of Fukkien, and Wan Yah, Tartar General, and to explain to them

His Excellency
John A. Bingham

them the facts with a view to remove a difference existing between China and Japan regarding the Formosan affair, has been arrested on his arrival at Amoy on the 5th inst. by United States Consul at that port, under instructions from the United States Minister at Pekin.

It has been brought under my notice by H.E. that none of the American citizens will be allowed to attach to the Japanese army and to proceed toward Formosa, and I understand that you will have no objection to the commission of the United States citizens to another country for the quiet and amicable undertaking without any hostile intent.

In my belief that the United States Govt. would have no objection to engage General LeGendre for the said undertaking, he was Commissioned.

Your Excellency will be pleased to understand the foregoing facts and to obtain information from the United States Minister in China as to the reasons for General LeGendre's arrest.

With respect & Consideration,

(Signed.) Terashima Munenori

H.I.J.M. Minister for Foreign Affairs.

No 112. Enclosure No 2.

Copy.

No 64. United States Legation,
Tokei, August 18, 1874.

Your Excellency:

I have the honor to acknowledge the receipt of your note of the 15th inst., in which you inform me that you have been notified by telegram that General Le Gendre, in the service of the Japanese Government has been arrested at Amoy by the American Consul, for cause to you unknown.

I have no knowledge of this event, but shall bring it to the attention of my Government

His Excellency
Terashima Munenori,
H.I.J.M. Minister
for Foreign Affairs.

Government.

In the absence of any information whatever relative to the subject, I feel justified in saying that the arrest, if made, was not ordered in any spirit of hostility to Japan, but for some cause appearing to the Consul to require it, in obedience to his instructions and to the requirements of the laws of his country.

Hoping that no wrong may be done to Japan or to General Le Gendre as an official of Your Excellency's Government,

I have the honor to be
Your Excellency's
obedient servant,

Signed. Jno. A Bingham